

ORDINANCE NO. _____

ENTITLED: **“AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY CB COMMUNITY BUSINESS TO MR-2 MEDIUM-DENSITY RESIDENTIAL-DEVELOPING FOR A PORTION OF PKT SUBDIVISION, WITHIN TRACT 318, SUNNYSIDE ADDITION, 7TH FILING, CHEYENNE, LARAMIE COUNTY, WYOMING, (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF POLK AVENUE AND ROCK SPRINGS STREET).”**

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on January 4, 2016, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of PKT Subdivision, located within Tract 318, Sunnyside Addition, 7th Filing, Cheyenne, Laramie County, Wyoming.

Section 5. That the PKT Subdivision is comprised of 7.06 acres; the portion of the PKT Subdivision that is the subject of this ordinance is the easterly 4.06 acres adjacent to Polk Avenue between Green River and Rock Springs Streets; and the remaining portion of PKT Subdivision (the westerly 3.0 acres) is already zoned MR-2 pursuant to Ordinances # 3047 and # 2445.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 5 above after this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated PKT Subdivision final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____